

ORDER SHEET

**LAHORE HIGH COURT, MULTAN BENCH,
MULTAN.
JUDICIAL DEPARTMENT.**

Civil Revision No. 1250-D-2011.

Bashir Ahmad versus. Iqbal Ahmad

J U D G M E N T

Date of hearing: **21.06.2021.**

Petitioner by: Rana A.D. Kamran, Advocate.

Respondent by: M/s. Abdul Rehman Khan
Laskani & Ch. Javed Haider,
Advocates.

AHMAD NADEEM ARSHAD, J. Through this civil revision, the petitioner has questioned the validity of the judgment and decree, dated 19.10.2011, passed by learned Additional District Judge, Muzaffargarh, whereby he, while accepting the appeal, preferred by respondent/plaintiff, set aside the judgment and decree, dated 13.07.2009, passed by learned Civil Judge, Muzaffargarh and decreed the suit instituted by the respondent/plaintiff for possession through pre-emption.

2. Brief facts, giving rise to the filing of this revision petition, are that the respondent/plaintiff (hereinafter to be called as “the respondent”) instituted a suit for possession on the basis of pre-emption *inter alia* with the averments that petitioner/defendant (hereinafter to be called as “the petitioner”) secretly purchased land

measuring 05 *kanals* and 12 *marlas* situated in *Mauza Baraham Wali*, Tehsil & District Muzaffargarh (herein after to be referred as “the suit property”) through mutation No. 1247 dated 29.07.2001 for a consideration of Rs.130,000/- but in order to defeat the pre-emptive right of the respondent/plaintiff, an excessive amount of Rs.300,000/- was shown as sale price; that Hafiz Muhammad Afzal told him about the alleged sale on 22.11.2001 at 09.00 a.m. when he along with Hafiz Imtiaz Ahmad, Muhammad Nawab and Sajid Hussain was sitting at his “*Dera*” situated at *Braham Wali*, Tehsil and District Muzaffargarh and upon coming to know about the alleged sale, he announced to exercise his right of pre-emption and thereafter he sent a notice of *Talb-i-Ishhad* through registered post with acknowledgement due to the petitioner on 23.11.2001; that being *Shafi Sharik*, *Shafi Khalit* and *Shafi Jar* he had preferential right to pre-empt the sale of suit property in favour of petitioner/defendant and that since he fulfilled all the requirements of *talbs* he prayed for decree of his suit. The petitioner resisted the suit by filing contesting written statement with the plea that the respondent did not perform the *talbs* according to law and sharia and prayed for dismissal of the suit. The learned trial Court after framing requisite Issues and recording evidence of

the parties dismissed the suit *vide* judgment and decree dated 13.07.2009. The respondent being aggrieved, assailed that judgment and decree by way of preferring an appeal which was allowed by the learned appellate court *vide* impugned judgment and decree, dated 19.10.2011 and decreed the suit instituted by the respondent. Being dissatisfied with the judgment of the appellate court, the petitioner has filed the instant revision petition.

3. Learned counsel for the petitioner contends that both the judgments are at variance; that the respondent has failed to perform requisite *talbs* as per law; that delivery of notice of *Talb-i-Ishhad* was not proved by the respondent as he did not produce the postman to prove the said fact but despite that the learned appellant Court has erroneously decreed the suit; that the respondent himself participated in the sale proceed and the sale consideration was delivered to the vendor through respondent, therefore, he was estopped to file pre-emption suit because while participating in the sale proceed, he waived his right of pre-emption, if any; that the judgment and decree passed by the learned appellate Court is against law and fact, without jurisdiction, based on surmises and conjectures, hence, liable to be set aside. In support of his contentions, learned counsel has relied

upon “BASHIR AHMAD versus GHULAM RASOOL”(2011 SCMR 762) and “RAZIA BEGUM versus ABDUL AZIZ” (2006 CLC 772).

4. Conversely, learned counsel for the respondent, while defending the impugned judgment and decree passed by the learned appellate Court, submits that the learned trial court decided all the Issues in favour of the respondent except issue No.2, which was later on decided by the appellate court in favour of him; that Issue No.2 was decided by the learned trial court only to the extent of *Talb-i-Ishhad* which finding being result of mis-reading and non-reading of evidence was rightly corrected by the learned appellate court; that the respondent had to prove only that he sent the notice of *Talb-i-Ishhad* at correct address and it was not his duty as to whether it was received to the addressee or not; that since he sent the notice of *Talb-i-Ishhad* through registered post with acknowledgement due thus complied with the requirement of law and while relying upon “LIAQAT ALI and others versus SAFDAR KHAN” (2020 SCMR 863) and “Mst. KALSOOM BEGUM Versus RIZWAN SHAH and others” (2020 SCMR 2029) argued that in the light of dictum laid down by the august Supreme Court of Pakistan there is no need to produce the postman as a witness in order to establish the delivery

of notice of *Talb-i-Ishhad* and prayed for dismissal of the revision petition.

5. I have heard learned counsel for the parties and perused the available record with their able assistance in addition to going through the case-law referred by the learned counsel for the parties.

6. Perusal of record reveals that while deciding issue No.2, the learned trial Court dismissed the suit of the respondent mainly on two grounds viz. firstly, the respondent failed to bring on record the original notice of *Talb-i-Ishhad*, as only photocopy of notice was produced as Exh.P.1, without seeking permission to produce copy of notice as secondary evidence. Secondly, the respondent failed to examine the postman, who delivered the notice of *Talb-i-Ishhad* and also failed to produce the envelope with registered cover/acknowledgment and concluded that the respondent failed to establish requisite *Talb-i-Ishhad* in accordance with the law. In answer to the first objection of the trial Court, the learned Appellate Court observed that the respondent moved an application for permission to produce secondary evidence which was allowed by the trial Court, as a result he produced the copy of notice *Talb-i-Ishhad* as secondary evidence.

It is admitted position that the respondent moved an application for production of secondary evidence and

after taking its reply, the learned trial court allowed that application *vide* order dated 10.01.2005. In this background, the learned appellate court rightly concluded that the finding of the trial court to the extent of the first objection was not sustainable.

7. Further, while dealing with the second objection, the appellate court concluded that the address of the petitioner in the registered envelope AD was the same as mentioned in the plaint. To fortify his findings, the appellate court referred to the statement of the petitioner, wherein he admitted that had a letter been sent at the address mentioned in the plaint, it would have been received/delivered. To conclude, submits that it has been observed in *2006 SCMR 1410* and *2008 SCMR 1366* that:

“Pre-emptor was required to send notice through registered post acknowledgement due wherever postal facility was available. Pre-emptor was obliged to prove that the notice had reached the addressee, requirement of section 13(3) of Punjab Pre-emption Act, 1991 was to prove the sending/dispatch of notice was presumed to have been delivered to the vendees by virtue of Section 26 of General Clauses Act, 1897.”

and that in the light of dictum laid down by the august Supreme Court of Pakistan, the trial court wrongly observed that the plaintiff had to prove that the notice was served upon the defendant.

8. I have gone through the esteemed judgments of the august Supreme Court “Hayat Muhammad and

others versus Mazhar Hussain” (2006 SCMR 1410) and “*Naseeb Khan versus Divisional Superintendent, Pakistan Railways, Lahore and others*” (2008 SCMR 1369). But the para reproduced, as referred above by the learned appellate court, in the impugned judgment, is not available there and also quoted wrong provision of law “section 26 of the General Clauses Act, 1897”.

“The General Clauses Act, 1897” was adopted in Pakistan, after its creation and amended time to time. For Provinces, the West Pakistan Assembly passed the Act *ibid* after certain changes and amendments which was called as “West Pakistan General Clauses Act, 1956”. After the dissolution of Units, the Provinces adopted that Act through Adaptation Laws. “Meaning of service by post” is defined under section 27 of the General Clauses Act, 1897 and in section 26 of the West Pakistan General Clauses Act, 1956 with same wording which is reproduced as under:-

Meaning of service by post.- Where any [Provincial] Act authorizes or requires any document to be served by post, whether the expression “serve” or either of the expressions “give” or “send” or any other expression is used, then, unless a different intention appears, the service shall be deemed to be effected by properly addressing, pre-paying and posting by registered post, a letter containing the documents, and, unless the contrary is proved, to have been effected at the time at which the letter would be delivered in the ordinary course of post.”

The general law of “Service by post” would not be applicable in respect of pre-emption as the same was attended to by the specific law on the subject, whereof stipulates, “registered cover acknowledgment due” and not just dispatch by registered post.

The august Supreme Court of Pakistan dealing with this proposition in a full bench judgment titled as “Khan Afsar versus Afsar Khan and others” (2015 SCMR 311) held as under:-

“The general law as contained in section 26 (supra) of the Provincial General Clauses Act, 1956 would not be applicable. Section 13(3) of the N.W.F.P. Pre-emption Act, 1987 stipulates, “under registered cover acknowledgment due” (emphasis added) whereas the words “acknowledgment due” are not mentioned in section 26 of the General Clauses Act, 1956 applicable to the Province of Khyber Pakhtunkhwa.”

9. The only question which boils down for determination by this Court is as to whether the requirement of *Talb-i-Ishhad* was fulfilled or not. Section 13(3) of Punjab Pre-emption Act, 1991 deals with the said requirement, which for convenience of reference is reproduced below:-

“ 13. Demand for pre-emption.

- (1) ...
- (2) ...

(3) Where a pre-emptor has made *Talb-i-Muwathibat* under subsection (2), he shall as soon thereafter as possible but not later than two weeks from the

date of knowledge make Talb-i-Ishhad by sending a notice in writing attested by two truthful witnesses, under registered cover acknowledgment due, to the vendee, confirming his intention to exercise the right of pre-emption.

Provides that in areas where owing to lack of post office facilities it is not possible for the pre-emptor to give registered notice, he may make Talb-i-Ishhad in the presence of two truthful witnesses.

According to the above, notice is to be sent under registered cover along with acknowledgment due by the prospective pre-emptor to confirm his intention to exercise the right of pre-emption. The Hon'ble Supreme Court of Pakistan in judgment titled as "Basharat Ali Khan vs. Muhammad Akbar" (2017 SCMR 309), has clinched the issue, under discussion, in the following manner:-

Section 13(2) of the Act, 1991 specifies unequivocally that Talb-i-Ishhad shall be made by (i) written notice (ii) attested by two truthful witnesses (iii) under registered cover (iv) acknowledgment due. The only situation in which the Act, 1991 does not require the sending of notice by registered cover acknowledgment due is when the post office facility is not available to a pre-emptor [S.13(3) proviso of the Act, 1991]. Secondly, according to case law, the prescribed condition of service of notice by registered cover acknowledgment due may be relaxed where the defendant/vendee admits that he has received notice of Talb-i-Ishhad. In all other cases, service of notice of Talb-i-Ishhad upon a vendee must be established by the proof of each of the afore-noted four prescribed elements of the notice of such Talb. These prescribed elements of the service of a Talb-i-Ishhad notice are specific statutory

requirements for the proof of service of notice of such Talb which demand has been construed to be a mandatory obligation of a preemptor-plaintiff. This means that if any of the aforementioned four elements of the prescribed mode of service of Talb-i-Ishhad is not proved by a plaintiff, he dishonors his mandatory obligation, and consequently, his pre-emption suit must fail.

It has further been held as follows:-

The requirement of Talbs as prescribed in the Act, 1991 enforces the substantive principles of Islamic law on the subject of pre-emption. Specified features of the Talbs envisaged by the Act, 1991, as noticed above, have been held in the precedents referred above to be mandatory because of their statutory intent and as requirements of Islamic Law codified by the Act, 1991. The mode and measures for service of notice of Talb-i-Ishhad prescribed in Section 13(3) of the Act 1991 extend protection to vendees of immovable property against claims of pre-emption assailing the purchases made by such vendees. To our minds, the various steps prescribed in section 13(3) in the Act, 1991 for the performance of Talbs implement the public policy of the law to exclude delay and vexatious claims for the benefit of defendant/vendees as a class in pre-emption suits”.

10. The respondent narrated in the plaint that he sent the notice of *Talb-i-Ishhad* to the petitioner through registered envelope and acknowledgment due, while the petitioner denied this fact in his written statement. The same is the position in the oral evidence, the PWs stated that notice was sent through registered post and DW denied this fact. The defendant as DW.1 categorically stated that he did not receive any notice. The receipt,

issued by the post office, was tendered in evidence as Exh.P.2. In this receipt, the word of A.D (Acknowledgment Due) was not mentioned which was normally written where Acknowledgment Due was attached with the envelope. The Acknowledgment Due was not produced in the evidence and in this regard no explanation was given. The registry clerk, who issued the receipt, the postman who allegedly delivered the registered post, and the scribe of the notice were not produced in the evidence.

11. In order to substantiate his contentions, the respondent examined himself as PW-1, Muhammad Afzal informer/witness of notice of *Talb-i-Ishhad* as PW-2 and Hafiz Imtiaz Hussain as PW-3 witness of *Talb-i-Ishhad*. In documentary evidence, the respondent produced copy of the notice of *Talb-i-Ishhad* as Exh.P-1, receipt of the Post office as Exh.P-2, copy of mutation No.1247 as Exh.P-3, copy of the record of right for the year 1998-99 as Exh.P-4, copy of *khasra girdawri* from crop Rabi 2001 to Kharif 2001 as Exh.P-5, copy of record of right for the year 2002-03 as Exh.P-6, copy of *Khasra girdawri* from crop Kharif 2006 to Rabi 2007 as Exh.P-7. The respondent failed to prove the delivery of notice of *Talb-i-Ishhad* through his oral as well as documentary evidence. In rebuttal, the petitioner

recorded his statement as DW-1 whereby he categorically denied that he ever received notice of *Talb-i-Ishhad*.

12. The receipt of the registered envelope has been produced in evidence as Exh.P-2 but a perusal of said receipt (Exh.P-2) reveals that the same is without acknowledgment due receipt. The receipt of the registered post (Exh.P-2) was produced by the respondent to prove dispatching of notice of *Talb-i-Ishhad* but astonishingly, the acknowledgment due card, which was to be stapled with the registered envelope, was not exhibited in the evidence by the respondent, which shows that compliance of sending of notice along with acknowledgment due card upon the vendees' address was not fulfilled. According to the version of the respondent, the postal envelope was sent to the petitioner, then the same should have been accompanied with an "acknowledgment due" card, and consequently this "acknowledgment due" card, returned served/unserved, but the same was not tendered in the evidence. The receipt of the registered cover envelope (Exh.P.2) also shows that no attachment of the card "acknowledgment due" note was given on the receipt.

13. Learned counsel for the respondent, while relying upon the citation *supra*, emphasized that there is no need to produce the postman as a witness to establish

the delivery of notice of *Talb-i-Ishhad*. To analyze his contention, it is better to see the findings of the august Supreme Court of Pakistan. Both the citations referred by the respondent relate to the Khyber Pakhtunkhwa Pre-emption Act, 1987 (X of 1987) while the case under discussion has emanated from a suit filed under the Punjab Pre-emption Act, 1991. Only slight difference is present in the language of section 13(2) but the basic requirement regarding sending notice of *Talb-i-Ishhad* through registered cover acknowledgment due is same of both enactments. The august Supreme Court of Pakistan in *Mst. Kalsoom Begum's* case reproduced its finding as given in Liaqat Ali's case, so to avoid repetition only the findings of the august Supreme Court of Pakistan in *Mst. Kalsoom Begum's* case are reproduced as under for better understanding: -

“Absence of the postman from witness-box who had actually delivered notices (Ex.PW-3/3-5) along with relevant receipts (Ex.PW-1/1-3) does not violate the law declared by this Court requiring official attendance to establish dispatch of the notice of Talb-i-Ishhad as Muhammad Yousaf, Clerk GPO Mansehra appeared as PW-1 to bring on record the relevant details and thereby successfully established dispatch of the required notice to the respondents. It has been held in the case of Liaqat Ali and others v. Safdar Khan (2020 SCMR 863) that “we are also not impressed by the argument that the postman who had delivered the notice ought to have appeared in person instead of Fazal Majeed, Registration Clerk GPO and Zahid Ahmed, Postman, who respectively appeared as PW-2 and PW-3. Plaintiff by producing these official witnesses along with relevant receipts and acknowledgment

due aptly discharged the onus to establish dispatch of the notice. There is perpetual continuity in State business, sustained by officials in succession.” The appellant discharged the onus to prove dispatch of notice by producing official witnesses from the concerned post office as the mode adopted by her is in accordance with the provisions of section 26 of the West Pakistan General Clauses Act, (Act VI), 1956, reproduced below:

“26. Meaning of service by post. --- Where any Provincial Act, authorizes or requires any document to be served by post, whether the expression “serve” or either of the expressions “give” or “send” or any other express is used, then, unless a different intention appears, the service shall be deemed to be effected by properly addressing, pre-paying and posting by registered post, a letter containing the documents, and, unless the contrary is proved, to have been effected at the time at which the letter would be delivered in the ordinary course of post.”

It is clear from above-referred judgments that the august Supreme Court of Pakistan dispensed with the production of postman and declared that it is not violative of the law, if the registration clerk of the concerned G.P.O., who issued the receipt along with the relevant record, appeared before the Court and brought on record the receipt and acknowledgment due. But in the case under discussion, the respondent failed to produce the Registry Clerk of the concerned Post Office and acknowledgment due card in his evidence, therefore, failed to perform *Talb-i-Ishhad* in accordance with law and could not take benefit of the judgments (referred supra).

14. The respondent should have confirmed through notice of *Talb-i-Ishhad* his intention to exercise the right of pre-emption. For this, he should have proved that notice was sent to the vendee/petitioner under registered cover acknowledgment due. To substantiate his contention, the respondent should have summoned the concerned postman who delivered the notice to the addressee or returned the original envelope containing that notice with acknowledgment due to the sender in case of non-service. It is settled principle of law that one should prove his initial case through his affirmative evidence. The august Supreme Court of Pakistan in its judgment reported as “MUHAMMAD BASHIR and others Versus ABBAS ALI SHAH” (2007 SCMR 1105) while highlighting the circumstances where evidence of the postman is necessary *inter alia* observed as under:-

*“11. The requirement of, "sending a notice in writing" is followed by a rider i.e. "under registered cover acknowledgment due". This signifies that the intention of law is not merely a formal notice on the part of the pre-emptor conveying his intention to pre-empt but a notice served on the addressee to apprise him about his intention to pre-empt. To say that mere "sending of notice" is enough would make the expression "acknowledgment due" redundant. The service of the addressee, as prescribed in law, therefore, is imperative. If the acknowledgment card carries an endorsement of "refusal" or "not accepted", a presumption of service would arise unless it is rebutted. The expression "sending notice" came up for consideration in *Thammiah, b. v. Election Officer* (1980) 1 Kant L.J. 19 and the*

Court held that it means, "that it should reach the hands of the person to whom it has been given and the giving is complete when it has been offered to a person but not accepted by it".

12. While there is no cavil with the proposition that in terms of Article 129 of the Qanun-e-Shahadat Order read with section 27 of the General Clauses Act, a presumption of service does arise if a notice sent through registered covered acknowledgment due is received back with the endorsement of "refused" by the postal authorities but if the addressee appears in Court and makes a statement on oath disowning receipt of the notice, the presumption under the afore-referred provision shall stand rebutted and the onus is on the party which is relying on such an endorsement to prove the same by producing the postman who made the endorsement.

13. In Tekchand Devidas v. Gulab Chand Chandan Mal (AIR 1957 Madhya Bharat 151) Gwalior Bench, reiterating an earlier view in Madh BLJ 1955 HCR 702, it was held that:-

"Where a notice is sent by registered post and it is alleged that it has been returned with the postal endorsement that the addressee refused to accept it, the endorsement has to be proved by calling in evidence the postman who tendered the registered letter to the addressee. Unless it is so proved the endorsement is not admissible in evidence in proof of the allegation."

14. In "Anil Kumar v. Nanak Chandra Verma" (AIR 1990 SC 1215), the learned Court was of the view that endorsement "refused" was sufficient to raise the presumption of service. The Court observed that in such cases, there could be no hard and fast rule; that in certain cases the statement of an addressee could be sufficient to rebut the presumption but if the testimony of the addressee is inherently unreliable, the position may be different and the question in each case is always whether there was sufficient evidence to discharge the initial burden. The Court found that in the said particular case since the addressee was having business premises at Ghaziabad, the plea taken by him that he remained away from the said place for a long period (from 19-12-1984 to 1-1-1985) was not believable and therefore, the

concurrent findings raising presumption of service were unexceptionable.

15. In “Piridno v. Khurshid Begum” (1989 SCMR 880), the question as to service of notice under section 30 of Displaced Persons (Compensation and Rehabilitation) Act, 1958 issued to the appellant who was undergoing imprisonment at the relevant time was rightly held by the two Courts below on the basis of mere endorsement of "refusal" thereon made by the postal authorities came up for consideration. The Court held that where addressee of notice appeared in the Court and denied service of notice, legal presumption of service was repudiated and the sender of the notice would be obliged to prove the genuineness of signatures of the addressee on the endorsement of refusal by its comparison with admitted one or by examination of the postman to prove that the notice was offered to the addressee and the same was refused. Moreso, when the addressee was in jail and the endorsement did not contain any verification from the jail authorities that the letter was offered to a prisoner and he refused.

16. In “Gulzar Begum v. Mst. Sairah Bibi” (1972 SCMR 251), the moot point again was whether service of notice under section 30 of the Displaced Persons (Compensation and Rehabilitation) Act (XXVII of 1958) regarding an ejectment petition filed under the West Pakistan Urban Rent Restriction Ordinance (VI of 1959) had been effected on the appellant who denied her signatures on the acknowledgment card. It was held that the appearance of the addressee and denial of service was sufficient to rebut the presumption and the trial Court should have got the signatures of the appellant compared with the signatures on the admitted documents or the postman ought to have appeared to prove that the notice of ejectment issued was offered, to the appellant for service and that she had received it and signed it.

17. In “Nazir-ud-Din v. Muhammad Ali” (1980 CLC 203), the import of presumption in terms of section 115 of the Evidence Act and section 27 of the General Clauses Act was considered and it was held that where addressee did not appear in court as witness to deny service, a presumption would arise against the addressees of having refused service and therefore, of having been served.

18. In "Khair Muhammad v. Akhtar Hussain" (1983 CLC 302), the question of notice under section 30 of Displaced Persons (Compensation and Rehabilitation) Act (XXVII of 1958), sent under registered cover acknowledgment due came up for consideration and the Court concluded as follows:--

"Similarly if a notice with correct description of addressee is posted and is returned back with the endorsement of "refused" by the postal authorities, the presumption of service of notice on the addressee will arise in the circumstances. However, the presumption of service in both cases shall stand rebutted if the addressee appears in Court and makes a statement on oath that he did not receive the letter alleged to have been sent to him or that he did not refuse to accept the service of letter. In such cases the initial burden of proving service of letter shall continue to remain on the person who relies on the service of such letter. This burden can be discharged by calling the postman concerned who delivered the letter or who made the endorsement of "refusal".

19. In "Fateh Muhammad v. Gul Sher" (2000 CLC 409), the effect of service of Talb-i-Ishhad through registered post acknowledgment due was commented upon and the Court was of the view that since, the postman had also not been produced to establish that these notices reached to the destination, mere notice is not enough in the matter; its receipt by the defendant had to be established as laid down in case of Muhammad Rafiq v. Ghulam Murtaza 1998 MLD 292.

20. In "Qaiser Zamani v. Rasheeda Begum" (1985 CLC 596), the question of service of notice under section 13-A of the West Pakistan Urban Rent Restriction Ordinance (VI of 1959) was under consideration and the notice had been sent through registered post acknowledgment due but the addressee denied having received the notice. While dilating on the presumption under section 114 of the Evidence Act (now Article 129 of Qanun-e-Shahadat Order) read with section 27 of General Clauses Act, the Court held as under:--

"As regards presumption of service under section 114 of the Evidence Act read with section 27 of General Clauses Act, suffice it to say that Mst. Qaiser Zamani appeared in Court and stated on oath that she did not receive the notice intimating change of transfer. In the circumstances of the case particularly when there was no evidence as to what was contained in the Registered envelope A1, it can

be safely observed that no such notice as was required by law was served upon her. Any admission of tenancy, under the present landlady in a suit filed for recovery of rent subsequent to the ejectment proceedings would not avail the respondent landlady. Rent Controller proceeded on the assumption that the ejectment application was itself a sufficient notice."

Similarly in "Amroz Khan v. Arbab Muhammad Ghalib (PLD 1980 Pesh. 163), the question of service of notice under section 13-A of the West Pakistan Urban Rent Restriction Ordinance was a point in issue and the Court was of the view that:--

"The primary evidence was that of the postman who allegedly took the registered notice to the addressee. Failure to produce the postman in support of the claim of Aftab Muhammad Ghalib negates his version that the tenant refused to take delivery of the registered notice in the case of Nawab Din v. Rafique Ahmed (1) the Lahore High Court has held that where the addressee denied the service of statutory notice the requisite proof to establish the service is the production of the postman as witness."

21. An analysis of the case-law discussed in the preceding paragraphs would show that when a presumption is raised in terms of Article 129 of the Qanun-e-Shahadat Order read with section 27 of the General Clauses Act on a question of fact, it would stand rebutted if the addressee makes a statement on oath denying service and the onus to prove service would continue to be on the party relying on such a notice unless of course there is other evidence to indicate that the denial of the service by the addressee is against the record. In "Bashir Ahmad v. Mumtaz Khan" PLD 1965 Lah. 126, despite denial of service by the addressee, the Court held that the presumption had not been rebutted as the addressee, it was in evidence, had otherwise knowledge of the circumstances/information which was sought to be conveyed through the notice in question. The Court observed at page 134 as under:--

"In this particular case, the strong presumption which arises in favour of Mumtaz Khan respondent under section 114 of the Evidence Act, has been held as not rebutted by the denial by Rao Bashir Ahmad that the notice was not brought or tendered to him by any postman. It has been admitted by him that Mumtaz Khan had told him that the house had been transferred to him and that he had refused to pay the rent to him until the revisional

proceedings, which he had initiated, were decided."

22. Admittedly there was no personal notice, and mere endorsement of "refusal" would not constitute service, since the petitioner-defendant had denied service not only in the written statement but also on oath while appearing in Court. The statement made by him in Court has been found by us to be reliable. In such circumstances, the presumption if any in terms of Article 129 of the Qanun-e-Shahadat Order stood rebutted and it was for the respondent-plaintiff to prove service by producing the postman who allegedly made the endorsement which has not been done."

The august Supreme Court of Pakistan followed this principle in "BASHIR AHMED Versus GHULAM RASOOL" (2011 SCMR 762) wherein it was held as under:-

"This Court in the judgment reported as "Muhammad Bashir v. Abbas Ali Shah (2007 SCMR 1105)" inter alia held that notice of Talb-i-Ishhad must be served on the vendee and the service of the addressee as prescribed in law is imperative and if the acknowledgment due carries an endorsement of 'refusal' or 'not accepted' a presumption of service would arise unless rebutted and if the addressee makes a statement on oath denying the service, then the onus to prove would be on the party relying upon such notice. It has further been held that if service of notice was denied by the vendee, then it was for the pre-emptor to prove service of notice by producing Postman, who allegedly made the endorsement. In the present case neither the service of the petitioner was effected as required under the law, nor any acknowledgment due carrying an endorsement of 'refusal' or 'not accepted' was produced in evidence. The present case is on better footing as in this case the plaintiff failed to produce any evidence to show that the defendant was 'served with a notice of Talb-i-Ishhad or that he refused to accept the notice, in as much as, acknowledgment due was not placed on record. Under the circumstances, to our mind, it was imperative for the plaintiff, in order to succeed in the suit for pre-emption, to produce evidence, including the Postman, to prove that in fact notice was served upon the petitioner or that he refused

to accept the notice, which was sent at his correct address.”

In the case titled “ALLAH DITTA through L.Rs. and others Versus MUHAMMAD ANAR” (2013 SCMR 866) it was held as under:-

“As regards, the issuance of notice of Talb-i-Ishhad is concerned, admittedly the postman has not been examined by the respondent-pre-emptor in terms of the law laid down in Muhammad Bashir and others v. Abbas Ali shah (2007 SCMR 1105).”

In the case titled “DAYAM KHAN and others Versus MUSLIM KHAN” (2015 SCMR 222) it was ruled as under: -.

“9. Moreover, it is also apparent that in order to prove the notices of Talb-i-Ishhad, it is to be seen whether the said notices have duly been served upon appellants Nos.2 and 3 or not, but there is nothing on record to show that the same was duly delivered to them. In this regard, the respondent has not examined the postman, thus, it is violative of the law laid down by this Court in the case of Allah Ditta through L.Rs. and others v. Muhammad Anar (2013 SCMR 866).

In case “BASHARAT ALI KHAN Versus MUHAMMAD AKBAR” (2017 SCMR 309), it was observed as under: -

“Indeed, the acknowledgment due card was not produced on record by the respondent/preemptor nor was the postman, who may have delivered the notice, called to the witness box. Consequently, according to the pleadings and also the evidence on record, the respondent/pre-emptor has not discharged his burden to prove the service of notice of Talb-i-Ishhad as required under section 13 (3) of the Act, 1991.”

In case “MIR MUHAMMAD KHAN and 2 others Versus HAIDER and others” (PLD 2020 Supreme Court 233)

the following observations were made: -

“Section 13 (3) of the 1991 Act clearly sets out that the notice of Talb-i-Ishhad must be served on the vendor through Registered Post with Acknowledgment Due. However, it is obvious from the record that the address mentioned in the postal receipt is not the same as the one mentioned in the notice. Moreover, nothing in the record proves the assertion of the pre-emptor that the notice was ever served on the Respondent in the case, who in his written statement before the Lahore High Court as well as before the Lower Courts categorically denied service of the notice in question. Therefore, it fell upon the Appellant/pre-emptor in the case to prove that the notice had been delivered. By failing to prove the same or even producing the postman who allegedly delivered the notice, the Appellant/pre-emptor failed to establish the sending or receipt of the notice for the performance of Talb-i-Ishhad in this case.”

In another case titled “SULTAN Versus NOOR ASGHAR” (2020 SCMR 682) the apex court of the country laid law to the following effect:-

“The performance of Talb is not a formality, rather it is substantial for the Plaintiff/Appellant to prove Talbs in accordance with law, otherwise the Suit of the Plaintiff/Appellant is defeated. When confronted with as to whether the defendant had admitted issuance and receipt of notice of Talb-i-Ishhad in the written statement, the answer is negative. In this view, when the Plaintiff/Appellant failed to plead and prove performance of Talbs, a decree on the basis of any defect on the part of the Vendee/Defendant could not be passed. Even the argument that the defendant has admitted issuance of notice of Talb-i-Ishhad is without force, and factually incorrect. The judgment of this Court reported as Allah Ditta through L.Rs. and others v. Muhammad Anar (2013 SCMR 866).”

In “MANZOOR HUSSAIN (deceased) through L.Rs. Versus MISRI KHAN” (PLD 2020 Supreme Court 749) the Hon’ble Supreme Court clinched the issue, under discussion, in the following manner:-

“The postman was also not produced to establish the delivery of Talb-i-Ishhad notice; this Court has repeatedly held the necessity to do this to establish delivery of such notice, including in Bashir Ahmed v Ghulam Rasool (2011 SCMR 762), Allah Ditta v Muhammad Anar (2013 SCMR 866), Basharat Ali Khan v Muhammad Akbar (2017 SCMR 309) and Sultan v Noor Asghar (2020 SCMR 682). Therefore, there was nothing on record to establish that Talb-i-Ishhad notice was delivered to or received by the respondent, who had denied receiving it, and having failed to establish the delivery/receipt of the said notice the pre-emption suit could not succeed.”

15. The non-mentioning of words “acknowledgment due” upon the receipt and non-production of the “acknowledgment due” card in the evidence, which is a mandatory obligation under the law, crumbles down the structure of *Talbs*. Admittedly, the respondent has failed to produce the Postman and Postal Clerk in evidence to prove the factum of delivery of notice to the petitioner. The mandatory requirement of production of Postman was not fulfilled, hence, the pre-requisite of notice of *Talb-i-Ishhad* was not complied with. Therefore, the oral assertion, with regard to the performance of *Talb-i-Ishhad*, was not sufficient to get the relief as sought for. Thus, my candid and firm opinion is that provisions of Section 13(3) of the Punjab Pre-emption Act, 1991, were not followed in their true perspective.

16. As a necessary corollary to the above discussion, it is fully proved that the respondent has

badly failed to prove the performance of *Talbs* in accordance with the law, which fact escaped notice of the learned appellate Court. Resultantly, the instant civil revision is allowed and impugned judgment and decree of the appellate court is set-aside. As a consequence, the suit filed by the respondent for possession on the basis of pre-emption shall stand **dismissed**. There shall be no order as to costs.

(AHMAD NADEEM ARSHAD)
JUDGE

Approved for reporting:

JUDGE.

*A.Razzaq**